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TITLE REPORT WITH CERTIFICATE

Rajvi Residency

VILLAGE : NIKOL, TA. ASARWA, DIST. AHMEDABAD

SARVE/ BLOCK NO.99/3,

T.P. NO. 119,

F.T. NO. 20/3

BHARAT B. PATEL

ADVOCATE

203, SHILP ARCADE, BAPUNAGAR- MEMCO ROAD, NR. HIRAWADI, AHMEDABAD

Mo. : 9998036275 - 9979917258

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OFFICE : 203, Shilp Arcade,
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Nr. Hirawadi, Ahmedabad-382345.

Ref. No.

Date : 04/07/2017

To,

Mr. Rakesh Shantilal Patel,

Nikol,

Ahmedabad.

TITLE REPORT WITH CERTIFICATE

Reg:- Agricultural land bearing revenue Survey/Block No. 99/3 total admeasuring 4452 sq. mts. or thereabouts situate, lying and being at Mouje Village - Nikol, Taluka - Asarva, in Sub-District Ahmedabad – 13 (City) and in the Registration District Ahmedabad which included in the Town Planning No. 119, Final Plot No. 20/3 which comprised 2671 sq. mts (which is herein after referred to and stated as "the said land") and belonging to Rakesh Shantilal Patel.

BHARAT B. PATEL SANAD No. G/3307/1999 ADVOCATE

The history of devolution of title of the said land is as under:-

1. Initially the said land was seizes, owned, occupied and possessed by Kuberdas Hargovdas Modi entry to that effect posted in the revenue records of the said land wide mutation no. 20 dated 23.05.1959.

2. That, thereafter, said tenants Kanaji Mohanji, Chelaji Mohanji, Bhalaji Mohanji, Ramsangji Mohanji had to pay the purchase price to land lord Kuberdas Hargovandas Modi on or before 30.01.1962 as the Section 32 (G) of The Bombay Tenency and Agrcultural Lands

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Act, 1948 as per the order passed by Mamlatdar and A. L. T. and entry to that effect was recorded in the revenue records of the said land by way of mutation enty no. 352 dated 08.04.1961.

3. That, thereafter, the said land along with anther lands acquired by the State Government's notification declared in gazzate by the Revenue Department wide order no. AM.2170 Pra. J. AM.1061-56099 LA.-1 dated 14.06.1966 that, thereafter no notification under section 6 has been declared by the Government and therefore, the earlier notification declared canclled. Entry to that effect was recorded in the revenue records of the said land by way of mutation entry no. 851 dated 05.01.1967.

4. That, thereafter, said tenents Kanaji Mohanji, Chelaji Mohanji, Bhalaji Mohanji, Ramsangji Mohanji paid the purchase price of the said land, therefore, entry to that effect recorded in the revenue records of the said land by way of mutation entry no. 856 dated 20.02.1967.

That, thereafter, said Kanaji Mohnji died intestate on 19.09.1981 leving behind his legal heirs and therefore the names of (1) Laxmiben wd/o Kanaji Mohanji (2) Kalaji Kanaji were entered in the revenue records of the said land by way of mutation enty no.2233 dated 17.08.1990 which was certified on 05.11.1990.

6. That, thereafter, as the said land was cultivated for farming purpose and hence notice under section 84(C) was canclled by Mamlatdar & A.L.T. wide his order in Ganot Case/437/93. Entry to that effect recorded in the revenue records of the said land by way of mutation enty no. 2672 dated 02.12.1996 which was certified on 31.01.1997.

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7. That, thereafter, said Chelaji Mohanji died intestate and unmarried and issueless and thereby his name was deleted from the revneue records by way of mutation entry no. 4987 dated 26.03.2008 which was certified on 13.05.2008.

8. That, thereafter, order passed by the City Mamlatdar, Ahmedabad to promulgation of computerized revenue records wide order no. RTS/ Sudharo/Kshati Yadi/SR/ No. 1084/2008 dated 22.09.2008. Entry to that effect recorded in the revenue records of the said land by way of mutation entry no. 5435 dated 27.09.2008 which was certified on 15.11.2008.

9. That, thereafter, order passed by the City Mamlatdar, Ahmedabad to promulgation of computerized revenue records wide order no. RTS/ Sudharo/Kshati Yadi/SR/ No. 2238/2008 dated 30.09.2008. Entry to that effect recorded in the revenue records of the said land by way of mutation entry no. 5482 dated 04.11.2008 which was certified on 08.12.2008.

10. That, thereafter, as per the resolution of Revenue Department Sr. No. PFR/102011/275/L/1 dated 17.03.2012, said Nikol village included in City (East) Taluka of District Ahmedabad. Entry to that effect was recorded in the revenue records of the said land by way of mutation entry no. 8261 dated 03.05.2012 which is certified on 05.05.2012.

11. That, thereafter, said Laxmiben wd/o Kanaji Mohnji died intestate on 13.06.2010 leving behind his legal heirs and therefore the name of Kalaji Kanaji were entered in the revenue records of the said land by way of mutation enty no.9275 dated 25.07.2013 which was certified on 21.09.2013.

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12. That, thereafter, (1) Bhalaji Mohanji (2) Ramsangji Mohanji and (3) Kalaji Kanaji have executed registered irrevocable power of attorney in favour of Amaratbhai Jivabhai Rabari which was duly registered before the office of Sub-Registrar of Ahmedabad - 7 (Odhav) under serial no. 7878 dated 25.09.2007.

13. That, thereafter, said (1) Bhalaji Mohanji (2) Ramsangji Mohanji (3) Dilip Ramsangji (4) Savitaben Ramsangji and (5) Navghanji Ramsangji had executed one registered general power of attorney in favor of Kishorbhai Gopalbhai Patel and Kishorbhai Vrajlal Rakholiya on 10.09.2009 which was dully registered before the office of the Sub-Registrar under serial no. 9213 dated 10.09.2009.

14. That, thereafter, said (1) Bhalaji Mohanji (2) Ramsangji Mohanji (3) Dilip. Ramsangji (4) Savitaben Ramsangji and (5) Navghanji Ramsangji sold and conveyed the 2968 sq. mts. of land through their constituted power of attorney holder in favor of (1) Kishorbhai Gopalbhai Patel and (2) Kishorbhai Vrajlal Rakholiya on 09.02.2010 which was dully registered before the office of Sub-Registrar Ahmedabad - 7 (Odhav) under serial no. 1526 dated 09.02.2010.

15. That, thereafter, said Kalalji Kanaji had executed on Agreement to Sell in favor of Popatbhai Dalabhai regariding 1484 sq. mts. of the land on 04.02.2014, which was dully registered befor the office of Sub-Registrar under serial no. 228 dated 04.02.2014.

16. That, thereafter, said (1) Bhalaji Mohanji (2) Ramsangji Mohanji and (3) Kalaji Kanaji had through thier constituted power of attorney said Amaratbhai Jivabhai Rabari applied for exemptation of the said land from Restricted Tennure land into non agricultural land for residential purpose and in continuation of the same the said land is

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exepted from restricted tennure to non agriculture land for residential purpose wide the order paseed by the Collector of Ahmedabad by his order ACB/TNC-2/Premium/Nikol/SR 397 / 2015 dated 07.09.2015 and entry to that effect was recorded in the revenue records of the said land by way of mutation entry no. 10914 dated 15.09.2015 which was certified on 22.12.2015.

17. That, thereafter, said Amaratbhai Jivabhai Rabari executed one Agreement to Sell in favor of (1) Gelabhai Ukabhai and (2) Rameshbhai Bhimjibhai Koladiya on 12.04.2016, which was dully notarized before Notary Shri Tarang R. Dave on the same day.

18. That, thereafter, (1) Bhalaji Mohanji (2) Ramsangji Mohanji and (3) Kalaji Kanaji sold and conveyed the said land through thier constituted power of attorney holder Amaratbhai Jivabhai Rabari to said Amaratbhai Jivabhai Rabari by way of conveyance (Sale Deed) on 10.11.2015, which was duly registered before the Sub-Registrar of Ahmedabad under serial no. 1947 dated 10.11.2015, and the name of said Amaratbhai Jivabhai Rabari entered in the revenue records of the said land by way of mutation entry no. 11009 dated 30.11.2015, which was cancelled on 24.08.2016.

19. That, thereafter, (1) Maganbhai Khodabhai Desai and (2) Babubhai Maganbhai Desai filed Special Civil Suit No. 521 of 2015 against (1) Amaratbhai Jivabhai Desai (2) Bhalalji Mohanji (3) Ramsangji Mohanji and (4) Kalaji Kanaji in the Court of Hon'ble Principal Senior Civil Judge of Ahmedabad (Rural) in which Hon'ble Court has granted the injunction under Exhibit - 5. Entry to that effect was recorded in the revenue record of the said land by way of mutation entry no. 11309 dated 17.05.2016 which was certified on 10.08.2016.

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20. That, thereafter, in RTS/Case No. 08 of 2016, Shri City Mamlatdar, Asarva passed order to sinedize the mutation entry no. 11009 till the final decision and the final out come of the said Special Civil Suit No. 521 of 2015 and canclled the said mutation entry no. 11009. Entry to that effect was recorded in the revenue records of the said land by way of mutation entry no. 11561 dated 14.09.2016 which was certified on 29.11.2016.

21. That, thereafter, the said Special Civil Suit No. 521 of 2015 has been withdrawn by the plaintiff and entry to that effect was recorded in the revenue records of the said land by way of muation entry no. 11619 dated 04.10.2016 which was certified on 29.11.2016.

22. That, thereafter, the name of said Amaratbhai Jivabhai Rabari entered in the revenue records of the said land by way of mutation entry no. 11620 dated 04.10.2016 in pursuant to the registered sale deed no. 1947 dated 10.11.2015, and the said entry was certified on 28.02.2017.

23. That, thereafter, said Popatbhai Dalabhai had canclled the Agreement to Sell which was executed by said Kalaji Kanaji on 03.04.2017 which was dully registered before the office of Sub-Registrar Ahmedabad - 13 (City) under serial no. 451 dated 03.04.2017.

24. That, thereafter, said Amaratbhai Jivabhai Rabari has sold and conveyed the said land to Rakesh Shantilal Patel by way of conveyance (Sale Deed) and which was confirmed by (1) Gelabhai Ukabhai Bharwad (Sindhav) and (2) Rameshbhai Bhimjibhai Koladiya, on 03.04.2017, which was dully notarized before the office of Sub-Registrar Ahmedabad - 13 (City) under serial no. 452 dated 03.04.2017. And the name of said Rakesh Shantilal Patel entered in

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the revenue records of the said land by way of mutation entry no. 11920 dated 03.04.2017 which was certified on 12.05.2017.

25. That, thereafter, said (1) Kishorbhai Gopalbhai Patel and (2) Kishor Vrajlal Rakholiya have canclled the registered sale deed no. 1526 dated 09.02.2010 by way of cancellation deed on 09.06.2017 which was dully registered before the office of Sub-Registrar of Ahmedabad-13 (City) under serial no. 881 dated 09.06.2017.

26. That, thereafter, said (1) Kishorbhai Gopalbhai Patel and (2) Kishor Vrajlal Rakholiya have canclled the registered power of attorney no. 9213 dated 10.09.2009 by way of cancellation deed on 09.06.2017 which was dully registered before the office of Sub-Registrar of Ahmedabad-13 (City) under serial no. 882 dated 09.06.2017.

27. That, thereafter, said (1) Kishorbhai Gopalbhai Patel and (2) Kishor Vrajlal Rakholiya have executed confirmation deed in favor of Rakesh Shantilal Patel on 09.06.2017 confirming the registered sale deed no. 452 dated 03.04.2017 executed in favor of Rakesh Shantilal Patel, which was dully registered before the office of Sub-Registrar of Ahmedabad-13(City) under serial no. 883 dated 09.06.2017.

28. That, thereafter, I have published a public notice regarding the title clear certificate inviting any claim/objection regarding the said land in daily newspaper Divya Bhskar on 30.12.2016, but till today I have not received any objection/s from anybody.

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BHARAT B. PATEL SANAD No. G/3307/1999 ADVOCATE

CERTIFICATE

THIS IS TO STATE THAT, We have examined the titles of Rakeshbhai Shantilal Patel about the said land and have caused to be taken searches of available revenue and registration records for last 30 years through our search clerk (Receipt no. 2017313001702, 2017007009509 and 2017312010655) of **agricultural land bearing revenue Survey/Block No. 99/3 total admeasuring 4452 sq. mts. or thereabouts situate, lying and being at Mouje Village - Nikol, Taluka - Asarva, in Sub-District Ahmedabad – 13 (City) and in the Registration District Ahmedabad which included in the Town Planning No. 119, Final Plot No. 20/3 which comprised 2671 sq. mts** and from that and believing the same to be true, correct and trustworthy and also believing upon the photocopies of the documents/papers/copies etc. furnished in the case file shown to us to be true and genuine, and also based upon the information given by the owner that no transfer/ agreement was made in respect of the said land during the period for which the record is not available which would make the title defective, we hereby opine that the same are clear and marketable and free from reasonable doubts subject to:-

1. Provision being made to safeguard, interest of minor family members of HUF of predecessor owners, if any, and major members confirming the sale transaction and sale being made as Karta of HUF for the benefit of estate and / or legal necessity.

BHARAT B. PATEL SANAD No. G/3307/1999 ADVOCATE

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Ref. No. // 9 //

Date :

DATED THIS 4th DAY OF JULY, 2017

BHARAT B. PATEL ADVOCATE SANAD No. G/3307/1999

Bharat B. Patel

Advocate

Note of caution and disclaimer:-

[1] This is to inform that search of registration record of immediate past about 2-3 months is not possible.

[2] Please note that the registration records of the year 1986 to 1989 of Sub Registrar's office is destroyed and, hence it cannot be inspected and its search is not available and the records of the year 1990 to 1993 is no trustworthy. That the computerized record is not well prepared/maintained by State Government agency and hence may be erroneous resulting into error.